

**THE PUNJAB ROAD TRANSPORT BOARD (PUNJAB)
REMOVAL OF UNDESIRABLE EMPLOYEES ORDINANCE,
1965**

(VIII of 1965)

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**¹THE ²[PUNJAB ROAD TRANSPORT BOARD] (³[PUNJAB]) REMOVAL OF
UNDESIRABLE EMPLOYEES ORDINANCE, 1965
(VIII of 1965)**

[17 May 1965]

An
Ordinance

to provide for the termination of services of undesirable employees of the ⁴[Punjab Road Transport Board].

Preamble.— WHEREAS it is expedient to make provision for the termination of the services of undesirable employees of the ⁵[Punjab Road Transport Board] in the manner hereinafter appearing;

AND WHEREAS the Provincial Assembly of West Pakistan is not in session and the Governor of West Pakistan is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred on him by clause (1) of Article 79 of the Constitution, the Governor of West Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.— (1) This Ordinance may be called the ⁶[Punjab Road Transport Board] (⁷[Punjab]) Removal of Undesirable Employees Ordinance, 1965.

(2) It shall come into force at once.

2. Definitions.— In this Ordinance, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say—

(a) “appropriate authority” means—

(i) Government in the case of employees appointed by Government, or

¹This Ordinance was promulgated by the Governor of West Pakistan on May 13, 1965, approved by the Provincial Assembly of West Pakistan, on July 7, 1965, under clause (3) of Article 79 of the Constitution of the Islamic Republic of Pakistan (1962), published in the West Pakistan Gazette (Extraordinary), dated July 7, 1965, pp. 2227-2229.

²Substituted for the words “Road Transport Corporation” by the Road Transport Corporation (West Pakistan) Removal of Undesirable Employees (Punjab Amendment) Act, 1973 (IV of 1973), published in the Punjab Gazette (Extraordinary), dated February 26, 1973, pp. 471-G-471-H, s. 2.

³Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 79.

⁴Substituted for the words “Road Transport Corporation” by the Road Transport Corporation (West Pakistan) Removal of Undesirable Employees (Punjab Amendment) Act, 1973 (IV of 1973), published in the Punjab Gazette (Extraordinary), dated February 26, 1973, pp. 471-G-471-H, s. 2(a).

⁵*Ibid.*

⁶*Ibid.*, s. 2.

⁷Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 79.

persons whose services have been transferred by Government to the ¹[Board];

- (ii) ²[Board] in the case of employees appointed by the ³[Board]; and
- (iii) ⁴[Managing Director] in the case of employees appointed by an authority or officer subordinate to the ⁵[Board];
- (b) “⁶[Managing Director]” means the ⁷[Managing Director] of the ⁸[Board];
- (c) “⁹[Board]” means the ¹⁰[Punjab Road Transport Board] established under section 43-A of the Motor Vehicles Act, 1939 (Act IV of 1939);
- (d) “employee” means any person serving in connection with the affairs of the ¹¹[Board], including a person whose services have been transferred to the ¹²[Board], but does not include a person on deputation from a Government Department; and
- (e) “Government” means the ¹³[Provincial Government of the Punjab].

3. Termination of services.— If in the opinion of the appropriate authority any employee is undesirable and it is expedient, in the public interest, to terminate his services, the appropriate authority may, notwithstanding anything to the contrary contained in any law, rule or instrument having the force of law—

- (i) after giving such employee a reasonable opportunity to show cause against the action proposed to be taken against him, terminate his services; and
- (ii) direct that such gratuity or provident fund as may be admissible to such employee under the rules and specified in the order be paid to him.

4. Appeal.— (1) Any employee in respect of whom an order terminating

¹Substituted for the word “Corporation” by the Road Transport Corporation (West Pakistan) Removal of Undesirable Employees (Punjab Amendment) Act, 1973 (IV of 1973), published in the Punjab Gazette (Extraordinary), dated February 26, 1973, pp. 471-G-471-H, s. 2(b).

²*Ibid.*

³*Ibid.*

⁴Substituted for the word “Chairman” by the Act *ibid.*, s. 2(c).

⁵Substituted for the word “Corporation” by the Act *ibid.*, s. 2(b).

⁶Substituted for the word “Chairman” by the Act *ibid.*, s. 2(c).

⁷*Ibid.*

⁸Substituted for the word “Corporation” by the Act *ibid.*, s. 2(b).

⁹*Ibid.*

¹⁰Substituted for the words “Road Transport Corporation” by the Act *ibid.*, s. 2(a).

¹¹Substituted for the word “Corporation” by the Act *ibid.*, s. 2(b).

¹²*Ibid.*

¹³Substituted for the words “Government of West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule, Part III, Serial No. 79.

his services has been made under section 3 by the ¹[Managing Director] or the ²[Board], may, within fifteen days of the communication to him of the order, appeal against the order to Government, and the order made in appeal shall be final.

(2) Where an order of retirement under section 3 has been made by Government, no appeal shall lie against such order, but the person in respect of whom such an order has been made, may, within fifteen days of the communication to him of such order, apply for review of the order to Government, and any order passed in review shall be final.

³**[4-A. Delegation.]**— The Board may delegate all or any of its powers in respect of its employees to the Managing Director.]

5. Protection taken under the Ordinance.— No suit, prosecution or other legal proceedings shall lie against Government, the ⁴[Board] or any other officer or servant of the ⁵[Board] for anything in good faith done or intended to be done under this Ordinance.

¹Substituted for the word "Chairman" by the Road Transport Corporation (West Pakistan) Removal of Undesirable Employees (Punjab Amendment) Act, 1973 (IV of 1973), published in the Punjab Gazette (Extraordinary), dated February 26, 1973, pp. 471-G-471-H, s. 2(c).

²Substituted for the word "Corporation" by the Act *ibid.* s. 2(b).

³Added by the Road Transport Board (West Pakistan) Removal of Undesirable Employees (Punjab Amendment) Act, 1975 (I of 1975) (w.e.f. 14.10.1972), published in the Punjab Gazette (Extraordinary), dated March 2, 1975, pp. 133-A-133-B, s. 2.

⁴Substituted for the word "Corporation" by the Road Transport Corporation (West Pakistan) Removal of Undesirable Employees (Punjab Amendment) Act, 1973 (IV of 1973), published in the Punjab Gazette (Extraordinary), dated February 26, 1973, pp. 471-G-471-H, s. 2(b).

⁵*Ibid.*